

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2025CUP0043346: MATTHEW ALAN SNYDER, et al. vs CROSIMI, LLC DBA
CRONIES SPORTS GRILL, et al.**

07/16/2026 in Department 42

**Motion to Compel Further Responses to Requests for Admission (Set One) and Request for
Sanctions**

Motions: (1) Plaintiff Snyder's Motion to Compel Defendant Crosimi, LLC dba Cronies Sports Grill's Further Responses to Requests for Admission (Set One) and Request for Sanctions [\$5,184.20] (*opposed*)
(2) Plaintiff Snyder's Motion to Compel Defendant Crosimi, LLC dba Cronies Sports Grill's Further Responses to Form Interrogatories (Set One) and Request for Sanctions [\$5,184.20] (*opposed*)
(3) Plaintiff Snyder's Motion to Compel Defendant Crosimi, LLC dba Cronies Sports Grill's Further Responses to Special Interrogatories (Set One) and Request for Sanctions [\$5,184.20] (*opposed*)
(4) Plaintiff Snyder's Motion to Compel Defendant Crosimi, LLC dba Cronies Sports Grill's Further Responses to Requests for Production (Set One) and Request for Sanctions [\$5,184.20] (*opposed*)

Tentative Ruling:

The Court intends to CONTINUE the hearing on each of the motions to **August 28, 2026**, in order for the parties to complete the required process of meeting and conferring in good faith. The Court finds that the parties did not engage in adequate, good-faith meet-and-confer efforts prior to filing these motions. The Court also determines that the moving papers have failed to adequately establish good cause supporting further responses and document production with any degree of specificity.

Based upon the above, as well as on the basis of Defendant's supplemental document production provided prior to the hearing on the motions, the Court requires the parties to engage in further meet-and-confer efforts before reaching the merits.

The Court is confident that the parties will be able to informally resolve, or at least significantly reduce, the issues outlined in the four motions. If the parties manage to informally resolve the remaining issues in dispute, then Plaintiff shall promptly take the motion hearings off calendar.

If the parties are unable to come to an informal resolution as to any particular request, then they shall, at least 16 court days prior to the continued hearing date, file and serve a joint statement identifying the remaining issues. The competing requests for sanctions are denied, without prejudice.

Discussion:

I. *Motion to Compel Further Responses*

Code of Civil Procedure sections 2030.300, and 2031.310, and 2033.290 provide for a party to bring a motion to compel further responses to interrogatories, requests for production, and requests for admission where the responding party provides inadequate, incomplete, or evasive responses, or the objections are too general or without merit. The propounding party must submit a declaration under Code of Civil Procedure section 2016.040 stating facts demonstrating a good faith and reasonable effort to informally resolve all issues raised by the motion. (Code Civ. Proc., §§ 2030.300, subd. (b)(1), 2031.310, subd. (b)(2), & 2033.290(b)(1).) The motions must be brought within 45 days of service of the responses or supplemental responses. (Code Civ. Proc., §§ 2030.300, subd. (c), 2031.310, subd. (c), & 2033.290, subd. (c).)

“The propounding party must demonstrate that the responses were incomplete, inadequate or evasive, or that the responding party asserted objections that are either without merit or too general.” (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 403.)

Regarding a motion to compel further responses to requests for production, “[t]he production and inspection procedures contemplated by Code of Civil Procedure section 2031 may be judicially enforced only upon a showing of good cause. The party required to show good cause ‘shall show specific facts justifying discovery and that the matter is relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence. But the moving party need only show, in addition to relevance (broadly construed), that his reasons for seeking discovery are within the declared purposes of the Discovery Act (that is, discovery will aid his case) and that discovery may be allowed without doing violence to equity, justice, or the inherent rights of the adversary. The court’s determination necessarily depends on the facts and issues of the particular case.” (*Volkswagenwerk Aktiengesellschaft v. Sup. Ct.* (1981) 123 Cal.App.3d 840, 850 [internal citations omitted], superseded on other grounds as stated in *American Home Assurance Co. v. Societe Commerciale Toutelectric* (2002) 104 Cal.App.4th 406, 409; Code Civ. Proc., § 2031.310, subd. (b)(1).)

In the case of interrogatories or requests for admission, the moving party has no burden of showing good cause for further responses, unlike with requests for production, which carry a statutory requirement of showing good cause. (*Coy v. Sup. Ct. of Contra Costa County* (1962) 58 Cal.2d 210, 220-221.) As the party asserting objections to the discovery requests, the opposing party has the initial burden of justifying them. (See *ibid.*)

II. *Application*

Plaintiff moves to compel further responses/production for nearly every request propounded.

The relevant background facts are as follows: On February 26, 2026, Plaintiff propounded all the discovery at issue on Defendant Crosimi, LLC dba Cronies Sports Grill. After two short extensions of time, on April 27, 2026 Defendant electronically served Plaintiff with its initial responses, and

verification was served the next day on April 28, 2026. It is not clear how the verifications were served. Plaintiff's counsel sent a meet-and-confer letter to defense counsel on June 9, 2026. The meet and confer letters sought further verified responses by June 12, 2026, or agreement to extension of time to file this motion and further responses by June 10, 2026 at 5 p.m. Defendant's counsel did not agree to either and these motions were filed by Plaintiff on June 16, 2026.

III. *Meet & Confer*

First, the Court examines the adequacy of Plaintiff's meet-and-confer efforts.

Code of Civil Procedure section 2016.040 provides: "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt . . . to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040.) A party must make "a serious attempt to obtain 'an informal resolution of each issue.'" (*Townsend v. Sup. Ct.* (1998) 61 Cal.App.4th 1431, 1435.)

"The meet and confer rule is designed to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order." (*Sabado v. Moraga* (1987) 189 Cal.App.3d 1, 12.) "This, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes." (*Townsend, supra*, 61 Cal.App.4th at p. 1435.)

Even where events in the case reveal great animosity between the attorneys and attempts to resolve the issue may be fruitless, the parties must still make the attempt. (*Ibid.*) The level of effort that constitutes a reasonable and good faith "meet and confer" on a discovery dispute depends on the circumstances of the dispute, including the complexity of the discovery, the history of litigation, and the nature of the interaction between counsel. (*Obregon v. Sup. Ct.* (1998) 67 Cal.App.4th 424, 431.) "In a larger, more complex discovery context, a greater effort at informal resolution may be warranted. In a simpler, or more narrowly focused case, a more modest effort may suffice." (*Ibid.*) "Judges have broad powers and responsibilities to determine what measures and procedures are appropriate in varying circumstances." (*Ibid.*)

Here, it does not appear that Plaintiff actually met his meet-and-confer obligations. While Plaintiff's counsel sent four very lengthy meet-and-confer letters to Defense counsel, the circumstances of Plaintiff's meet-and-confer efforts show that they were not undertaken in good faith. The June 9, 2026 letter was sent after hours and gave Defendant less than 24 hours to decide whether to attempt to serve further responses within three days without objections, or to agree to a lengthy extension of time to file these motions.

Notably, Plaintiff made no meaningful attempt to meet and confer until the eve of the filing deadline, waiting until day 42 of the 45-day statutory period before initiating any discussions. Prior to that last-minute effort, Plaintiff had remained silent. Faced with the impending deadline, Defendant elected to stand on its objections, oppose the motions, and nevertheless continue engaging in the meet-and-confer process. On June 26, 2026, counsel participated in approximately two hours of meet-and-confer discussions, which resulted in Defendant agreeing to serve supplemental responses to each set of discovery requests.

The Court, however, cannot determine the extent to which the disputed issues were resolved because neither the opposition nor the reply identifies which responses were supplemented or explains whether any issues became moot as a result. Even so, the record demonstrates that, following the filing of the motions, the parties were able to narrow the scope of their disputes through further discussions. These facts further support the conclusion that Plaintiff failed to engage in a reasonable and good-faith meet-and-confer effort before filing the present motions.

On the basis of the foregoing, the Court will continue the motions and order the parties to further meet and confer. The Court believes that it is likely that with some further efforts actually aimed at informally resolving the issues in dispute, Plaintiff may be able to completely resolve the parties' discovery dispute without resorting to law and motion.

IV. *Sanctions*

With respect to sanctions, unsuccessfully making or opposing a motion to compel discovery can subject a party to sanctions unless that party acted with substantial justification or other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §§ 2030.300, subd. (d), 2031.310, subd. (h), & 2033.290, subd. (d).) The court should grant the request for sanctions unless it finds that a party acted with "substantial justification" in opposing the discovery. "Substantial justification means clearly reasonable justification that is well grounded in both law and fact." (*Padron v. Watchtower Bible & Tract Society of New York, Inc.* (2017) 16 Cal.App.5th 1246, 1269.) "The party subject to sanctions bears the burden to establish it acted with substantial justification or other circumstances make the imposition of the sanction unjust." (*Ibid.*)

A trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery and, in choosing a sanction, should "attempt[] to tailor the sanction to the harm caused by the withheld discovery." (*Sauer v. Superior Court* (1987) 195 Cal.App.3d 213, 229.) "Discovery sanctions serve to remedy the harm caused to the party suffering the discovery misconduct. [Citation.] Because discovery sanctions are not designed to punish, "sanctions should be tailored to serve that remedial purpose, should not put the moving party in a better position than he would otherwise have been had he obtained the requested discovery, and should be proportionate to the offending party's misconduct." [Citation.]" (*Kwan Software Engineering, Inc. v. Hennings* (2020) 58 Cal.App.5th 57, 74.)

Here, the Court DENIES both parties' competing requests for sanctions. Overall, the Court observes that both parties could have exercised better judgment in handling this discovery dispute. Plaintiff's failure to engage in an adequate, good-faith meet-and-confer process before filing the motion to compel further responses constitutes a misuse of the discovery process. (Code Civ. Proc., § 2023.010, subd. (i); *Ellis v. Toshiba America Information Systems, Inc.* (2013) 218 Cal.App.4th 853, 879.) As discussed above, Plaintiff and his counsel did not adequately meet and confer before filing the motions. Defendant, however, could have facilitated that process by agreeing to the requested extension, as Defendant ultimately did after the motions were filed. Under these circumstances, the Court declines to impose sanctions on either party, and encourages both sides to engage in timely and meaningful meet-and-confer efforts in the future.